

Directed Energy Technology Experimentation and Research (DETER)

Advanced Research Announcement (ARA)



Industry User Guide

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TABLE OF CONTENTS

CHAPTER 1: INTRODUCTION

- 1. Overview**
- 2. Criteria for Use**

CHAPTER 2: ARA CALL VARIATIONS

CHAPTER 3: OPEN ARA WHITE PAPER PREPARATION

- 1. Overview**
- 2. White Paper Instructions**
- 3. Proposal Instructions**

CHAPTER 4: COMMUNICATION

CHAPTER 5: CALL PROCESS

CHAPTER 6: REVIEW INFORMATION

- 1. Evaluation Criteria**
- 2. White Paper Review and Selection Process**
- 3. Proposal Review and Selection Process**

CHAPTER 7: AWARD PROCESS

- 1. Notification of Award Decision**
- 2. Model Document**
- 3. Technical and Cost Negotiations**
- 4. Science & Technology (S&T) Program Protection**

CHAPTER 8: ASSISTANCE INSTRUMENTS

- 1. Background**
- 2. General**
- 3. When a Grant Would be Awarded**
- 4. When a Cooperative Agreement Would be Awarded**

CHAPTER 9: OTHER TRANSACTIONS

- 1. Background**
- 2. 10 U.S.C. 4021 (formerly 10 U.S.C. 2371) (Research OT)**
- 3. 10 U.S.C. 4022 (formerly 10 U.S.C. 2371b) (Prototype Project OT)**
- 4. 10 U.S.C. 4025 (formerly 10 U.S.C. 2374a) (Prizes for Advanced Technology Achievements)**

CHAPTER 10: DEFINITIONS

EXHIBIT A: GRAPHIC DEPICTIONS OF COMMON ARA CALL VARIATIONS

ANNOUNCEMENT ATTACHMENTS

~~Attachment 1: AFRL/RD In-House Facilities for Experimentation & Testing~~

Attachment 1: DETER Industry Guide [*This document*]

Attachment 2: Valid Eval Rubric (Version 2.0)

Attachment 3: Standard Form 424 (Research & Related Senior/Key Person Profile)

Attachment 4: Security Program Questionnaire

Attachment 5: Privacy Act Statement

*The Government reserves the right to amend this user guide as necessary. The most current version will be updated to Government wide Point of Entry (GPE).

CHAPTER 1: INTRODUCTION

1. Overview: 10 U.S.C.§4023 (formerly 10 U.S.C.§2373) – Procurement for Experimental Purposes “The Secretary of Defense and the Secretaries of the military departments may each buy ordnance, signal, chemical activity, transportation, energy, medical, space-flight, and aeronautical supplies, including parts and accessories, and designs thereof, that the Secretary of Defense or the Secretary concerned considers necessary for experimental or test purposes in the development of the best supplies that are needed for the national defense.”

2. Criteria for Use: Use of an ARA to solicit for research and development is encouraged when:

- There is an increased focus on mission integration or need for an agile contracting methods for more advanced R&D programs
- Prototyping, system or hardware specific work
- The technology is a covered area under the nine (9) topic areas listed in the solicitation and 10 U.S.C.§4023
- Necessary for experimental or test purposes in the development of the best supplies and designs for national defense

CHAPTER 2: ARA CALL VARIATIONS: Variations of the ARA Call process are available for use. The following types are commonly used, but are not considered all inclusive. (See Exhibit A for graphic depiction of some common ARA variations.)

One-Step: The one-step process is used to request full technical and cost proposals from each Offeror. The proposals are reviewed in accordance with the solicitation criteria and typically, all of a selected proposal, part of a selected proposal, or none of the proposals may be selected for award.

Two-Step: The two-step process is sometimes used when a large number of proposals are anticipated. Potential Offerors are invited to submit brief descriptive white papers in lieu of full proposals. The ARA must state whether an unfavorable white paper review will bar the Offeror from further consideration. Full proposals are requested from those Offerors selected in the white paper review process. When proposals are received, they are reviewed consistent with the process for one-step ARAs.

Open Call: This approach allows for white paper and/or proposal submittals at any time within a specified period. ARAs must be publicized no less frequently than annually. White papers/proposals are reviewed when received during the period that the ARA is open.

Closed Call: This approach allows for white paper and/or proposal submittals at a specified date and time as set forth in the ARA. Late bid and proposal provisions are usually included in the ARA.

Staggered-Closed Call: The staggered-closed Call states a specified date and time for receipt of proposals or white papers, but also allows for proposals/white papers after the date and time set for proposal receipt. All Offerors should be cautioned, however, that the likelihood of funding proposals received after the specified date and time is substantially reduced.

Limited Call: This approach allows for a direct request of a Request for Proposal (RFP) or a white paper without publishing to the GPE.

The Government may issue solicitations that combine one or more of the above approaches.

CHAPTER 3: OPEN ARA WHITE PAPER PREPARATION

Offeror Submission Information

1. Overview: The submission process consists of two steps* described in detail below. White papers – and full proposals, if requested by the Government – shall be submitted in accordance with this announcement.

The Government anticipates white papers will be unclassified. Offerors shall NOT submit classified white papers or proposals to the DETER Org Mailbox. Special instructions will be provided in the event a classified proposal is required.

Dialogue between prospective Offerors and Government representatives is strongly encouraged. Any Offeror intending to submit a white paper in response to a topic area is encouraged to notify the Contracting Officer/Agreements Officer (CO/AO) in advance. This is a Two-Step Process; full proposals will not be accepted or evaluated unless specifically requested by the CO/AO.

Due to the dynamically evolving nature of US warfighter directed energy needs, the DETER announcement is subject to updates, revisions, and/or changes to the topic areas. Therefore, Offerors are highly encouraged to continually monitor the DETER SAM.GOV announcement (<https://sam.gov/opp/bdeff157d5374361be525c4e740bebb2/view>) to ensure they receive latest guidance for this announcement.

2. White Paper (First Step) Submission Instructions:

a. General: This open announcement requests white papers and a rough order of magnitude (ROM) cost estimate in response to the nine (9) topic areas outlined in the announcement. The white paper shall include a discussion of the nature and scope of the research and the Offeror's proposed technical approach. All white papers will be kept on file for one year after the end of the quarter in which it was submitted. An Offeror submitting a proposal without first submitting a white paper will not be eligible for an award. The Government will not reimburse any Offeror the cost of preparing white papers in response to this announcement, nor is it considered an allowable direct charge to any resulting award or any other contract.

b. Page Limitation: The white paper shall be limited to six (6) full 8.5-inch x 11-inch pages, prepared and submitted in Microsoft Word or Adobe Acrobat. The font shall be Times New Roman 12 point with no less than one inch (1") margins (left, right, top and bottom). Headers and/or footers may be included in the margin parameters. Standard single line spacing shall be used for all paragraphs. All white paper pages shall be presented in portrait page layout orientation. Charts, graphs, matrices, tables, and similar depictions (including spreadsheets) shall be clearly legible. All electronic data must be virus free. The page limitation covers all information including indices,

photographs, foldouts (counted as one (1) page for each 8.5 inch by 11-inch portion), tables, charts, appendices, attachments, etc. The Government will not consider pages in excess of these limitations.

WHITE PAPER SUBMISSION WEBSITE:

<https://usg.valideval.com/teams/DETER/signup>.

If it is determined that a classified white paper is required, please DO NOT deliver any classified portion of the white paper, but rather contact the DETER Org Mailbox for delivery instructions. If files contain links, the links must be intact and maintained through all revisions. Files shall not be read/write/password protected (i.e., must be unlocked, non-password protected, and/or unprotected).

c. Format: The white paper shall be formatted as follows:

(1) Section A. White Paper Narrative: The narrative should include but not be limited to the following:

- a.) **Abstract:** Provide a brief (500 word maximum) summary of the overall proposed technical effort. The abstract should summarize or highlight key facets of the proposed effort. The Government intends to utilize the abstract to more efficiently route the white paper submission to correct evaluators/technical divisions for consideration.
- a.) **Discussion of the nature and scope of the research; the problem statement; the Offeror's proposed objectives and technical approach/solution; all relevant assumptions; an overview of tasks and methods to achieve each objective; and expected results**
- b.) **Description of state-of-the-art knowledge or methods to be employed, along with a clear strategy, resources, and schedule for maturing the technology. Address if this research has been currently, or previously, performed with another agency.**
- c.) **Description of final product(s) to be delivered (prototypes, demos, reports, software, etc.)**
- d.) **Mapping of effort to specific need(s) outlined in the topic area(s) description, with a strategy for transition of deliverables to a Government acquisition program. Transitions can be specific to an existing/future system or have broad application to several existing/future systems**
- e.) **Explanation of how the proposed effort provides benefits to the national defense and a strategy for verifying those intended benefits**
- f.) **Any restrictions on Government use, release, or disclosure of technical data**
- g.) **Key personnel, consultants, or subcontractors to support the effort and evidence of expertise and experience to accomplish the proposed tasks**

(3) Section B. White Paper ROM Cost: Provide a ROM cost estimate for planning purposes. The ROM should provide top-level details on major cost items such as labor, special equipment that will need to be purchased, materials, and any subcontracts or other organizations' costs (to include government furnished facilities, equipment, or personnel) for the proposed effort. The ROM cost estimate will be used to assess best value to the Government (cost versus benefit) and determine if there are sufficient funds available for the proposed effort. Any second step RFPs will require a full cost proposal.

d. Other Information: If the Offeror wishes to restrict its white papers, it shall be clearly and appropriately marked with the restrictions. For FAR-based proposals, follow the guidance under FAR 52.215-1(e).

NOTE: White paper may not be read if all requirements of this announcement are not met.

NOTE: Offerors are advised that duplicate white paper submissions received within the same 12-month period will not receive separate evaluations. Please do NOT submit duplicate white paper submission or white papers that would be considered substantially the same effort within the same 12-month period.

3. Proposal (Second Step) Submission Instructions: Full proposal instructions will be provided within a Request for Proposal Letter from the CO/AO as applicable and will not be posted to the GPE.

* AFRL/RD reserves the right to collapse a white paper/Two-Step into a One-Step if the situation warrants the white paper contains sufficient technical detail to do full Technical Proposal Evaluation instead of a white paper Evaluation.

CHAPTER 4: COMMUNICATION

All communications with the Government program manager or Acquisition Team members must follow communication guidelines as follows:

- Communication with Acquisition Team members is encouraged prior to the issuance of an RFP, after which time all communication must be submitted, in writing, to the Contracting Office.
- Acquisition Team members cannot attempt to replace the potential Offeror's original ideas with their own ideas or the program office's preferred approach.
- Acquisition Team members cannot share ideas or technical solutions provided in conversations, white papers, or proposals to a competing potential proposer or anyone else outside the team.
- If the Acquisition Team member provides information concerning the objectives/goals/requirements of the ARA to one potential Offeror, this information must be provided to all potential Offerors with the CO/AO's coordination via an ARA amendment.
- If a potential Offeror is provided with information that expands/contradicts/retracts information contained in the published announcement, this same information must be made publicly available to all potential Offerors in a Questions and Answers document. In some cases, this will also require an amendment to the ARA.
- In addition to the above the following guidelines apply for one-on-one communications:
 - The Acquisition Team members may discuss whether the potential Offeror is "on-track" and/or consistent with the needs of the AF. However, while the potential Offeror may be "on-track" is no way intended to imply the potential Offeror will be awarded a contract or issued an RFP.
 - Any one-on-one communications are not a pre-screening process.
 - The Acquisition Team members cannot answer requests for advice regarding technical approach / desired solution or individual proposal elements, e.g., subcontractors, materials, labor hours, etc.
 - Notwithstanding anything discussed during a one-on-one communication, all terms and conditions of the announcement remain unchanged unless and until an amendment is issued.

NOTE: Pre-proposal communication procedures will be established at the Call level for all Calls by the CO/AO.

CHAPTER 5: CALL PROCESS

Calls under this ARA will be announced on the GPE and, for assistance instruments, Grants.gov. Calls will request interested Offerors to submit either a white paper or full proposal (depending on the ARA Call variation selected, see Chapter 2). The ARA Call announcement on the GPE and, for assistance instruments, Grants.gov will be the only solicitation. This may be a short announcement that links to further information or the full announcement. It is recommended interested Offerors read each Call very carefully. Typically, the following information will be included in Call announcements:

- An identifying Call number and program name.
- Points of contact for both contracting and technical matters. Offerors are encouraged to contact the listed points of contact for any assistance or questions.
- A description of the stated areas of potential research or a description of the scientific or engineering problems needing new and creative solutions. A short summary of areas of program interest, expanded as appropriate, to include problems, objectives, and deliverable items (reports, software, prototypes, etc.).
- Information on proposal or white paper format and submission requirements.
- The address and/or method for submittal.
- If a two-step variation is used, a description of the full proposal invitation procedures.
- Criteria for selecting white papers and proposals.
- If an informational briefing is scheduled, details as to time, date, place, number of attendees permitted, clearances needed, etc.
- Advice to foreign-owned firms that their participation is subject to foreign disclosure review procedures and that they should immediately contact the contracting focal point for information if they contemplate responding.
- If export-controlled technical data is involved, a note advising that only firms holding certification under the US/Canada Joint Certification Program (JCP) <http://www.dla.mil/HQ/InformationOperations/Offers/Products/LogisticsApplications/JCP.aspx> are allowed access to such data.
- The total dollar value or range of dollar values as well as anticipated period of performance may be stated in the announcement.
- A statement that multiple white papers or proposals addressing different topic areas, within the purview of the announcement, may be submitted by each Offeror.
- Notice to Offerors that only Contracting/Grants/Agreements Officers are legally authorized to commit the Government.
- Date and time when white papers or full proposals will be due. If an Open ARA variation has been selected white papers or proposals may be allowed over a specified extended period.

CHAPTER 6: REVIEW INFORMATION

1. Evaluation Criteria: Evaluations for white papers submitted under the Open ARA will be conducted by a peer or scientific review process and will use the following criteria:

a. Technical Merit: Technical Merit is first in order of priority (more important than Relevance to AFRL Programs or Value/Cost) and shall be evaluated based on the following criteria, which are of equal importance.

(1) Overall scientific or technical merit

- Problem statement, objectives and deliverables are clearly defined
- Objectives and expected results are anchored by theory, analysis, or data
- Assumptions are logical, reasonable, and appropriate
- Offeror demonstrates knowledge of and applies state-of-the-art methods

(2) Soundness of the Offeror's technical approach

- Approach is defined, logical and feasible
- Schedule, speed of delivery (tech readiness date), and required resources are reasonable and appropriate
- Proposed results are measurable and testable
- Key staff have appropriate qualifications to perform proposed effort

b. Relevance to AFRL Programs: Outlined in topic area description

- Proposed effort is logically mapped to one or more topic area need(s)
- Proposed effort provides valuable contribution to meeting one or more topic area need(s)
- Benefits appropriately off-set identified risks

c. Value/Cost: Value/Cost is subject to funds availability.

(1) For white papers: The ROM cost estimate will be evaluated on whether it is appropriate for the expected benefit and if sufficient funding is available. While papers that satisfy the technical merit factor, demonstrate benefits that are commensurate with the cost, and for which sufficient funding is determined to be available will be evaluated as best value to the Government.

(2) For proposals: Cost will be evaluated on the degree to which it is realistic, reasonable and represents the best value to the Government. Cost realism will assess the likelihood that the proposed technical approach can be successfully accomplished for the cost proposed. Cost reasonableness will consider the cost proposed in conjunction with program objectives and availability of funding. Prior to award of a potential successful offer, the Contracting Officer will make a final determination regarding price reasonableness.

NOTE: Evaluation criteria for Calls will be addressed at the Call level.

2. **White Paper Review and Selection Process (First Step):** Evaluation of white papers will be conducted by a peer or scientific review process, using the criteria described above (or as outlined at the Call level). Based on the evaluation, white papers will be categorized as Highly Recommended, Selectable, or Not Selectable, using the definitions below. White papers that are evaluated as Selectable/Highly Recommended may be sent a Request for Proposal Letter from the CO/AO. The Government's goal is to notify Offerors of the disposition of their white paper within 60 days after the end of the quarter in which the white paper is received. Unsuccessful Offerors will be notified in writing and will be provided with a consensus report of the evaluation. Highly Recommended and Selectable awards not finalized due to lack of funding will be retained for 12 months for consideration once funding is secured.

Under the Open ARA, White Papers may be submitted at any time; however, the submissions will be evaluated on a quarterly basis. The following dates will be the cutoff for the quarterly evaluations:

31 March

30 June

30 September

31 December

Any White Paper received after the quarterly cutoff date will be evaluated with the next round of submissions.

3. **Proposal Review and Selection Process (Second Step):** Proposals requested after white papers will also be reviewed against the criteria described above. Based on the peer or scientific review process, proposals will be categorized as:

a. **Highly Recommended:** Well-conceived scientifically and technically sound proposal pertinent to accomplish goals and objectives. Proposals are recommended for acceptance (subject to availability of funds) and normally are displaced only by other Highly Recommended proposals.

b. **Selectable:** Scientifically or technically sound proposals that may need additional development. Proposals are recommended for acceptance if sufficient funding is available, but at a lower priority than Highly Recommended proposals. To ensure a diversity of approaches, a Selectable proposal may be prioritized over a Highly Recommended proposal if the Selectable proposal presents a unique approach unlike any of the Highly Recommended proposals.

c. **Not Selectable:** Proposal is not technically sound or does not meet agency needs. Even if sufficient funding existed, the proposal will not be funded. Not selectable proposals will not be retained.

Note 1: The recommendations above will be based on the Government's evaluation of the technical approach independent of the cost proposal. If recommended for award, the Contracting Officer will make a final determination regarding price reasonableness.

Note 2: When the Government elects to award only part of a proposal, the selected part may be categorized as Highly Recommended or Selectable although the proposal as a whole may not merit such a categorization.

Note 3: The Government may award some, all, or none of the proposals received, and may award without negotiation/discussion; however, the Government reserves the right to negotiate with any Offeror(s) whose proposal is selected for funding.

CHAPTER 7: AWARD PROCESS (for Open White Papers and Calls)

1. Notification of Award Decision: The CO/AO or CS will notify, in writing, any Offeror(s) selected for negotiation of potential award and Offeror(s) that was/were not recommended for award. Such notification will only occur after the technical peer or scientific review has been approved. The notification of recommendation for award is not to be construed to mean an award is assured, as availability of funds and successful negotiations are prerequisites to any award. During this notification process, the CO/AO/CS may request any required updates or revisions begin immediately.

a. More Than One Award and Flexibility in Awards made: Under this ARA, more than one award may be made based on the quality of the proposals and availability of funding. Occasionally, the Government may be interested in awarding only a certain portion (or portions) of a white paper or proposal. This ARA method provides the flexibility to make an award for only those portions or tasks of the white paper or proposal that are of interest to the Government. The Offeror will be notified in writing if the Government intends to make an award based on the white paper or proposal. The notification will indicate if all or only portions of the proposal will be included in the award.

b. Sequence of Awards: Awards will be made to Selectable / Highly Recommended proposals. However, because of the uniqueness of the ARA review process, it may be the case that while the overall white paper or proposal is ranked Not Selectable a certain part of it may be ranked Selectable / Highly Recommended. In this case the flexibility of the ARA process will allow the Government to make an award for that portion of the proposal that is of high interest to the Government. Not Selectable proposals, with the exception of certain parts of the proposal (as described above) are generally not awarded. Offerors whose proposal(s) are not recommended for acceptance will be notified by the CO/AO.

2. Model Document: The CO/AO/CS may transmit the Government's anticipated award format (Model Document) to the selected Offeror(s). The model document provides the basis for negotiations on all award requirements, terms, and conditions, and will be attached to the Call announcement or RFP.

3. Technical and Cost Negotiations

a. Technical: Any unresolved technical issues will normally be addressed first. Typically, negotiations involve specific language issues or determining Government needs versus effort proposed. Most of these negotiations are conducted via telephone/online meeting resources and supplemented by email. If many complex issues arise, the Government negotiator may request face-to-face meetings to resolve them.

b. Terms and Conditions: Any exceptions, changes, or additions to the model document should be clearly identified and justification should be provided. Some may affect

pricing or technical considerations (e.g., limited and restricted rights, licensing agreements, or royalties) and should normally be resolved before negotiating cost/fee/profit and total price.

c. Cost/Fee/Profit (if applicable): Price should be addressed last. If rates, factors, or other cost elements change after proposal submission, the CO/AO must be informed as quickly as possible to preclude any delays. The Offeror may be asked to document these changes. The CO/AO is responsible for evaluating the reasonableness of offered prices. The analytical techniques and procedures employed are meant to ensure that the final price is fair and reasonable.

d. Agreement: Once negotiations have been concluded, the CO/AO will ask the Offeror to confirm the negotiations in writing. The confirmation should include the cost/fee/profit or price, and any terms and conditions agreed upon. Depending on the award type (e.g. FAR based, OT, Grant, etc.) the CO/AO will finalize any pre-award requirements and submit to the Offeror for final execution.

4. Science & Technology (S&T) Program Protection

Offerors are notified that completion of a S&T Program Protection review with an acceptable risk determination is required for all awards issued under this ARA. To reach an acceptable risk level, Offerors may be asked to provide a mitigation plan for any identified S&T Protection risks.

The Government reserves the right to determine an Offeror unawardable based on an unacceptable S&T Protection risk determination. During the security review process, if it is determined that Covered Individuals are identified as potentially having a conflict of interest/commitment, the Government will not award the contract/agreement.

- a) Security Risk Review. Each proposal submission will be subject to a Security Risk Review prior to selection for award. The Security Risk Review is applied to federally funded research designed to help protect Department of the Air Force Science and Technology (S&T) by identifying possible vectors of undue foreign influence. AFRL will follow all policy and procedures outlined in Air Force Research Laboratory (AFRL) Instruction AFRLI 61-113, *Science and Technology Protection for the Air Force Research Laboratory* and Department of the Air Force Instruction DAFI 63-101/20-101, *Integrated Lifecycle Management*.
- b) Security risk review for these subject proposals will be developed for all proposed Senior/Key personnel and “Covered Individuals”. These risk reviews will be based on information disclosed in a Research and Related Senior and Key Person Profile and Security Questionnaire. In addition, any accompanying or referenced documents, publicly available information, and information contained in internal

U.S. Government databases will be utilized in risk reviews. Nationality or citizenship is not a factor in the security risk reviews.

- c) When considering all external engagements, AFRL incorporates a holistic decision-making process that encompasses technical and security factors. The security review method implemented by AFRL measures risk factors to identify the appropriate Risk Acceptance Level (RAL) within the organization. The objective analysis of the security risk factors is conducted to empower AFRL's S&T leaders to make risk-informed decisions. The review process generally looks at five factors, or risk areas, but with authority for expanded review as noted in OSD R&E Memorandum dated 6 Jun 2023. The potential security risk factors are set forth below:

Potential security risk factors:

(1) Foreign Talent Program	(2) Funding	(3) Foreign Institutions	(4) Denied Entities	(5) U.S. Government Systems
Indicators of active and past participation or sponsorship in a strategic competitor Foreign Talent Program with history of targeting U.S. research or technology.	Indicators of active, historical, or pattern of conflict of interest, conflict of commitment, or pattern of direct funding from a strategic competitor or country with history of targeting U.S. research or technology.	Indicators of active, historical, or pattern of association with direct affiliation, collaboration with a foreign institution, person, or entity associated with a strategic competitor or country with history of targeting U.S. research or technology.	Indicators of an active affiliation or past affiliation or present association with an entity on the U.S. Gov't denied entity or person list or EO 13959 or subsequent similar issuances	Indicators that may reside in safeguarded U.S. government environments, according to its ascribed classification and not releasable for public consumption.

Actions Required by Applicants at proposal or white paper submission:

- a. In accordance with AFRLI 61-113, S&T Protection, Applicants/Recipients are required to submit the following documentation with their proposal:
- (i) Standard Form 424, "Research and Related Senior and Key Person Profile (Expanded) AND
 - (ii) Security Program Questionnaire AND
 - (iii) "Privacy Act Statement" consent form for each Covered Individual that is also signed by the Applicant as that Individual's Sponsor.

In the event a security risk is identified, and the Government has determined the security risk exceeds the acceptable threshold, the Applicant/Recipient will be notified and informed of the termination/decline of award. The Government will only provide a general statement of the reasoning due to Government OPSEC measures.

By submission of the Research and Related Senior Key Person Profile and Security Program Questionnaire, the Applicant agrees to comply with the following:

- a. To certify that each covered individual who is listed on the application has been made aware: (1) of all relevant disclosure requirements, including the requirements of 42 U.S.C. § 6605; and (2) that false representations may be subject to prosecution and liability pursuant to, but not limited to, 18 U.S.C. §§287, 1001, 1031 and 31 U.S.C. §§ 3729-3733 and 3802. See National Science and Technology Council Guidance for Implementing National

Security Presidential Memorandum 33 (NSPM-33) on National Security Strategy for United States Government-Supported Research and Development (January 2022).

- b. To establish and maintain an internal process or procedure to address foreign talent programs, conflicts of commitment, conflicts of interest, and research integrity.
- c. To exercise due diligence to identify Foreign Components or participation by Senior/Key Personnel in Foreign Government Talent Recruitment Programs and agree to share such information with the Government upon request.

Actions Required by Covered Individuals:

- a. **Covered Individual.** An individual who contributes in a substantive, meaningful way to the scientific development or execution of a research and development project proposed to be carried out with a research and development award from a Federal research agency; and is designated as a covered individual by the Federal research agency concerned. See 42 U.S.C. § 6605, Definitions. (For purposes of this BAA, “covered individuals” are all Senior/Key Personnel.)
- b. Federal law requires that all current and pending research support, as defined by 42 U.S.C. §6605, must be disclosed at the time of proposal submission, for all covered individuals. The Government may require an updated disclosure during the performance of any research project selected for funding. The Government will require an updated disclosure whenever covered individuals are added or identified as performing under the funded project.
- c. Covered Individuals are also required to sign the “Privacy Act Statement” and provide such signed statement to the applicant for submission with the proposal.
- d. Any decision to accept a proposal for funding under this announcement will include full reliance on the individual’s statements. Failure to report fully and completely all sources of project support and outside positions and affiliations may be considered a material statement within the meaning of the False Claims Act, 31 U.S.C. 3729, and constitute a violation of Federal law.

Actions required by Performers during period of performance:

- a. Applicant/Recipient will be required to re-submit the Research and Related Senior and Key Person Profile as an annual requirement. In addition, whenever a new covered individual(s) is to be added or identified as performing under the funded project, a new Research and Related Senior and Key Person Profile will be required prior to continued performance.
- b. If, at any time, during performance of this award, the Applicant/Recipient learns that its Senior/Key Research Personnel (including any sub awardee personnel who receive this designation) are or are believed to be participants in a Foreign Government Talent Program or have Foreign Components with a strategic competitor or country with a history of targeting U.S. technology for unauthorized transfer, the Applicant/recipient will notify the Contracting/Grants Officer within 5 business days of awareness.
- c. This disclosure must include specific information as to the personnel involved and the nature of the situation and relationship. The Government will review this information and conduct any necessary fact-finding or discussion with the Applicant/Recipient. The Government's determination on disclosure may include acceptance, mitigation, or termination of the award.
- d. Failure of the Applicant/Recipient to reasonably exercise due diligence to discover or ensure that neither it nor any of its Senior/Key Research Personnel involved in the subject award are participating in a Foreign Government Talent Program or have a Foreign Component with a strategic competitor or country with a history of targeting U.S. technology for unauthorized transfer may result in the Government exercising remedies in accordance with federal law and regulation.
- e. The provisions concerning this disclosure will be included in each award.
- f. The Applicant/Recipient will be required to flow down this provision to all sub awardees who have personnel designated as Senior/Key Research Personnel as a result of their involvement in the performance of the research.

CHAPTER 8: ASSISTANCE INSTRUMENTS

1. **Background:** An award may be made from this open ARA announcement or any Calls in the form of a Grant, Cooperative Agreement (CA), or Other Transactions (OT) for Research, these are collectively known as "Assistance Instruments." Assistance Instruments are appropriate when the goal of the project is to provide assistance by transferring a thing of value (such as money or government facilities) to accomplish a public purpose. On the other hand, a FAR type contract is usually more appropriate when the goal of the program is the purchase of goods or services for the direct benefit of the government. Assistance Instruments, while legally termed contracts, are not subject to the FAR. There are three (3) basic kinds of Assistance Instruments: (1) Grants, (2) CAs, and (3) OTs for Research (10 U.S.C. 2371 only).

2. **General:** Assistance Instruments differ from FAR type contracts in that they are usually more streamlined and less complex. Assistance Instruments establish a "partnership" between the Government and the recipient rather than the "buyer/seller" relationship common with a FAR contract. A grant does not require substantial Government involvement, whereas a CA or OT for research does. "Substantial Government involvement" is defined as involvement, of a technical nature, over and above the normal program management functions. Assistance Instruments are similar to FAR contracts in that they also require basic cost and technical proposals (including the requirement for a proposed Statement of Work [SOW]), as well as negotiation and agreement on articles, similar to terms and conditions. They differ in that agreement is based on an estimated budget rather than a fair and reasonable price. They are covered by OMB guidance, "Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards," published in the CFR at 2 CFR part 200 and implemented by the DoD at 2 CFR part 1103, "Interim Grants and Cooperative Agreements Implementation of Guidance in 2 CFR part 200" (79 FR 76047, December 19, 2014). Provisions of the DoDGARs other than 32 CFR parts 32 and 33 continue to be in effect, with applicability as stated in those provisions and are not subject to the FAR.

3. **When a Grant Would Be Awarded:** Grants are normally awarded for basic and applied research efforts. They are used when the objective is to advance the state of knowledge in an area of science or technology; to find a solution to a specific problem; or to achieve improved performance or reduce cost where no specific end result or product, other than documentation, is required. Any hardware involved would be for demonstration or proof-of-principle purposes only. The award of a Grant must meet several other requirements in addition to the above. A Grant must provide to the Government, at a minimum, a paid-up license and march-in rights in patents. The following characteristics apply to a Grant award:

- a. Primarily awarded to educational or non-profit organizations.
- b. Classified information is usually not involved.
- c. There is no fee or profit.

- d. 2 CFR 200 (2 CFR 1103) and DoDGARs (other than parts 32 and 33) applies.
- e. Substantial involvement between the Government and recipient is not required.
- f. Not subject to the terms of a procurement contract.

4. When a CA Would be Awarded: CAs are normally awarded for basic research, applied research, or advanced research or development efforts. The following characteristics apply to a CA award:

- a. Used when a FAR type contract or grant has been determined inappropriate.
- b. Substantial involvement between the Government and recipient is required.
- c. Paid-up license and march-in rights in patents must be obtained.
- d. Government Purpose Rights in data usually obtained.
- e. There is no profit/fee.
- f. Cost share may be highly encouraged or required and may consist of other than cash; IR&D cost sharing allowable.
- g. 2 CFR 200 (2 CFR 1103) and DoDGARs (other than parts 32 and 33) applies.

CHAPTER 9: OTHER TRANSACTIONS & MISCELLANEOUS

1. **Background:** This announcement, along with Calls, allows for the award of Other Transactions under the authorities of 10 U.S.C. §2371 (Research OT) and 10 U.S.C. §2371(b) (Prototype Project OT). FAR requirements and processes are not applicable to awards issued under these authorities. As such, all articles, terms and conditions will be negotiated on a case-by-case basis with the CO/AO.
2. **10 U.S.C. §4021 (formerly 10 U.S.C. §2371) (Research OT):** Awards under this authority can be considered either an assistance instrument (see Chapter 8 above) where the principal purpose is stimulating a public purpose or as an acquisition where the main objective is a direct benefit of the Government. Regardless of the type, awards under this authority shall be for basic, applied and advanced research projects, and generally have a focus on dual-use (commercial and defense) applications.
3. **10 U.S.C. §4022 (formerly 10 U.S.C. §2371b) (Prototype Project OT):** Offerors that are contemplating a response under this authority shall refer to the latest DoD Other Transaction Guide for additional information and guidance.
 - a. The statute allows for prototype projects “that are directly relevant to enhancing the mission effectiveness of military personnel and the supporting platforms, systems, components, or materials proposed to be acquired or developed by the Department of Defense, or to improvement of platforms, systems, components, or materials in use by the armed forces.”
 - b. Prototypes Projects address: “proof of concepts, models, reverse engineering to address obsolescence, pilots, novel application of commercial technologies for defense purposes, agile development activity, creation, design, development, demonstration of technical or operational utility, or combinations of the foregoing. A process, including a business process, may be the subject of a prototype project.”
 - c. To be eligible for award, transactions under this authority must meet one of the requirements as identified under 10 U.S.C. §2371b (d)(1), summarized here:
 - (1) At least one nontraditional defense contractor or nonprofit research institution participating to a significant extent
 - (2) All significant participants in the transaction are small businesses or nontraditional contractors
 - (3) At least one third of the total cost of the prototype is to be paid out of funds provided by sources other than the Federal Government
 - (4) The senior procurement executive determines in writing that exceptional circumstances justify use of a transaction that would not be feasible or appropriate under a contract

- d. In accordance with 10 U.S.C. §4022 (f), a prototype project awarded under this authority may provide for the non-competitive award of a follow-on production contract or transaction to the participants in the transaction. Non-competitive procedures are allowed if (summarized):
 - (1) Competitive procedures were used for the selection of parties in the transaction; and
 - (2) The participants in the transaction successfully completed the prototype project

Offerors are hereby notified that the Government is definitively interested in the award of a follow-on transaction or contract for all awarded prototype projects unless explicitly stated otherwise within a Call.
 - e. Successful completion criteria for the prototype project includes (or as otherwise defined within Call):
 - (1) Met key technical goals of a project,
 - (2) Satisfied success metrics incorporated into the Prototype award, or
 - (3) Accomplished a particularly favorable or unexpected result that justifies transition to production or follow-on activities
4. 10 U.S.C. §4025 (formerly 10 U.S.C. §2374a) (Prize for Advanced Technology Achievements): Awards under this authority allow for the recognition of outstanding achievements in basic, applied and advanced research, technology development, and prototype development that are related to the military mission. Awards can be either cash awards (\$1,000,000 limit) or non-monetary (up to \$10,000 limit). Awards issued under the DETER announcement are considered to have been widely advertised and therefore the result of competitive procedures.

CHAPTER 10: DEFINITIONS

10 U.S.C. §4023 (formerly 10 U.S.C. §2373) – Procurement for Experimental Purposes

“The Secretary of Defense and the Secretaries of the military Departments may each buy ordnance, signal, chemical activity, transportation, energy, medical, space-flight, and aeronautical supplies, including parts and accessories, and designs thereof, that the Secretary of Defense or the Secretary concerned considers necessary for experimental or test purposes in the development of the best supplies that are needed for the national defense.”

Advisory and Assistance Services (A&AS): Those services provided under contract by nongovernmental sources to support or improve: Organizational policy development; decision-making; management and administration; program and/or project management and administration; or R&D activities. It can also mean the furnishing of professional advice or assistance rendered to improve the effectiveness of Federal management processes or procedures (including those of an engineering and technical nature). In rendering the foregoing services, outputs may take the form of information, advice, opinions, alternatives, analyses, evaluations, recommendations, training and the day-to-day aid of support personnel needed for the successful performance of ongoing Federal operations.

Assistance Instrument: Business arrangement that is appropriate when the goal of the program is to transfer a thing of value to accomplish a public purpose of support or stimulation as authorized by law. Assistance instruments include grants, cooperative agreements, technology investment agreements, and other transactions for research. Assistance instruments are covered by Office of Management and Budget (OMB) guidance, "Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards," published in the Code of Federal Regulations (CFR) at 2 CFR part 200 and implemented by the DoD at 2 CFR part 1103, "Interim Grants and Cooperative Agreements Implementation of Guidance in 2 CFR part 200" (79 FR 76047, December 19, 2014). Provisions of the DoD Grants and Agreements Regulations (DoDGARs) other than 32 CFR parts 32 and 33 continue to be in effect, with applicability as stated in those provisions and are not subject to the Federal Acquisition Regulation

Contract Specialist: Term used interchangeably to include the Contract Negotiator or Buyer. Be advised only a Contracting Officer is warranted to obligate the Government. Regulations specify several other functions that must be performed by a Contracting Officer.

Contracting/Agreements Officer (CO/AO): Title given to a person with the authority to enter into, administer, and/or terminate contracts or agreements and make related determinations and findings. Only a Contracting/Agreements Officer has the authority

to obligate the Government.

Cooperative Agreement: An assistance instrument in which there will be substantial involvement between the Government and the recipient to perform basic research, applied research, and advanced technology development. A cost-sharing arrangement may be required. (See 2 CFR §200.24)

Cost Realism Analysis: The process of independently reviewing and evaluating specific elements of each Offeror's proposed cost estimate to determine whether the estimated proposed cost elements are realistic for the work to be performed; reflect a clear understanding of the requirements; and are consistent with the unique methods of performance and materials described in the Offeror's technical proposal. Cost realism analysis shall be performed on cost-reimbursement contracts to determine the probable cost of performance for each Offeror. (See FAR 15.404-1(d).)

Government wide Point of Entry (GPE): The single point where Government business opportunities greater than \$25,000, including synopses of proposed contract actions, solicitations, and associated information, can be accessed electronically by the public. The GPE is (See FAR 2.101). The GPE is located at <https://www.beta.sam.gov>

Government Furnished Property (GFP): Property in the possession of, or directly acquired by, the Government and subsequently furnished to the contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract. (See FAR Part 45.)

Grant: An instrument under which the Government provides assistance to a recipient for basic, applied or advanced research. There is no substantial Government involvement. (See 2 CFR §200.51)

Grants.gov: The public notification media used when an ARA will allow for the award of an assistance instrument (grant, cooperative agreement, technology investment agreement).

Independent Research and Development (IR&D) Cost: The cost of effort which is neither sponsored by a grant, nor required in performing a contract, and which falls within any of the following four areas: (a) Basic research, (b) Applied research, (c) Development, and (d) Systems and other concept formulation studies. (See FAR 31.001.)

Other Transactions for Prototype 10 U.S.C. §4022 provides the Secretary of the Air

Force authority to enter into transactions (other than contracts) for prototype projects that are directly relevant to enhancing the mission effectiveness of military personnel and the supporting platforms, systems, components, or materials proposed to be acquired or developed by the Department of Defense, or to improvement of platforms, systems, components, or materials in use by the armed forces. Agreements issued under this authority are commonly referred to as Other Transaction (OT) for Prototype agreements. (See *The OSD Other Transaction Guide for Prototype Projects* for more information)

Other Transactions for Research: An instrument under which the Government provides assistance to a recipient (can be a single contractor or a team of contractors) to transfer something of value to the public sector. Substantial Government involvement and 50/50 cost sharing are required. Used when it is not appropriate or feasible to use a contract, grant, or cooperative agreement. (See 10 U.S.C. §4023)

Peer or Scientific Review: The process where each proposal is reviewed against the criteria called out in the ARA. It may also address the technical team's assessment of applicable quantitative elements, to include number of labor hours proposed, skills mix, materials, subcontracting, etc.

Price Analyst: A contracting professional whose function is focused on analyzing an Offeror's cost proposal and documenting the results of the negotiation. A Price Analyst is not a Contract Specialist.

Program Manager (PM): The individual responsible for overseeing/managing a Science & Technology (S&T) acquisition or assistance project. This individual may have a different job title in their primary position.

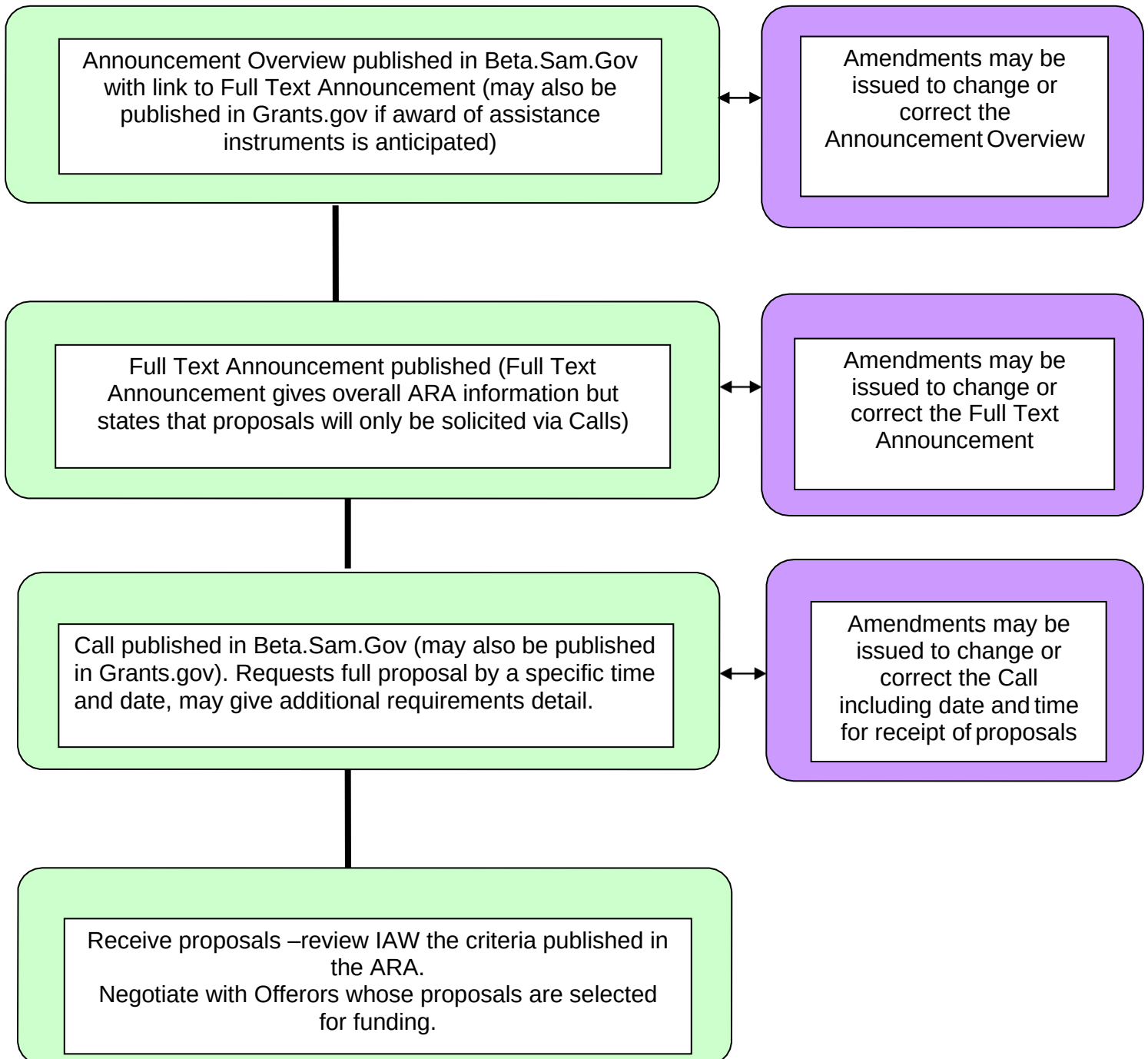
Statement of Work (SOW): The document that captures the technical content of the contractual effort. The contract may incorporate portions of the Offeror's technical proposal instead of a formal SOW. For ARAs, Offerors are often required to submit a non-proprietary contractor statement of work (sometimes referred to as a C-SOW) when responding to the RFP.

Technical/Cost Peer or Scientific Review: The team's review of each proposal against each criterion. The team is required to document this review and provide a recommendation to the Contracting Officer.

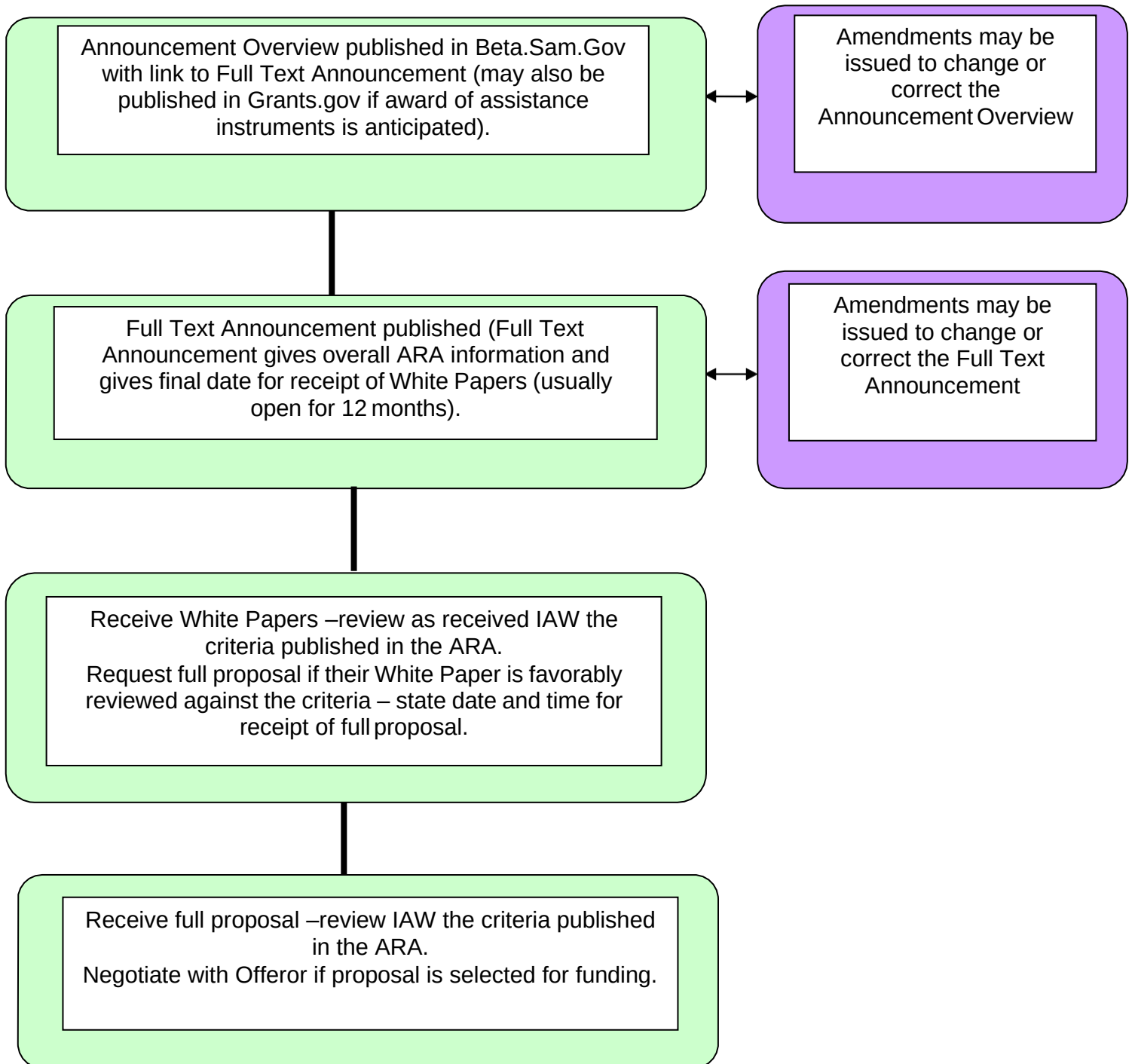
White Paper: A brief (usually 2-5 pages) summary of the proposed technical approach with an accompanying rough-order-of-magnitude (ROM) price.

EXHIBIT A: GRAPHIC DEPICTIONS OF COMMON ARA CALL VARIATIONS

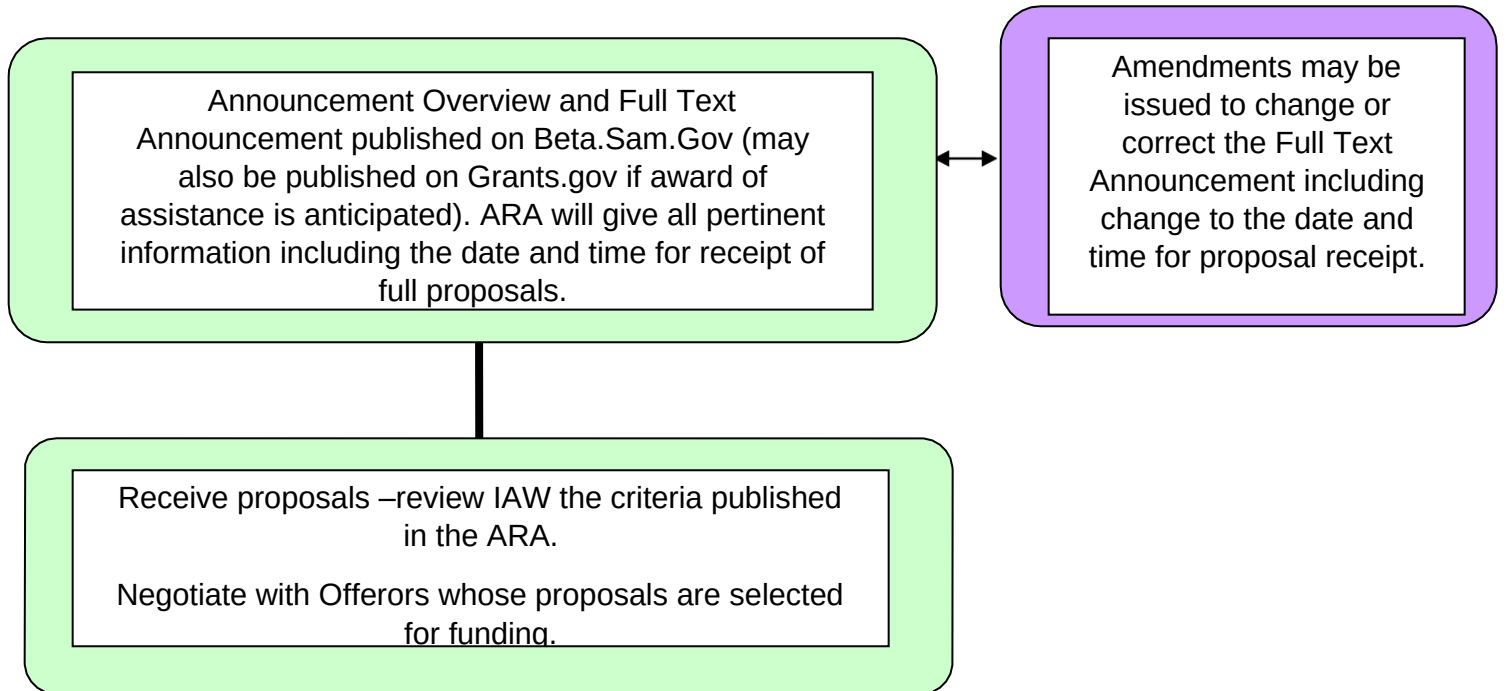
ARA with Calls (DETER)



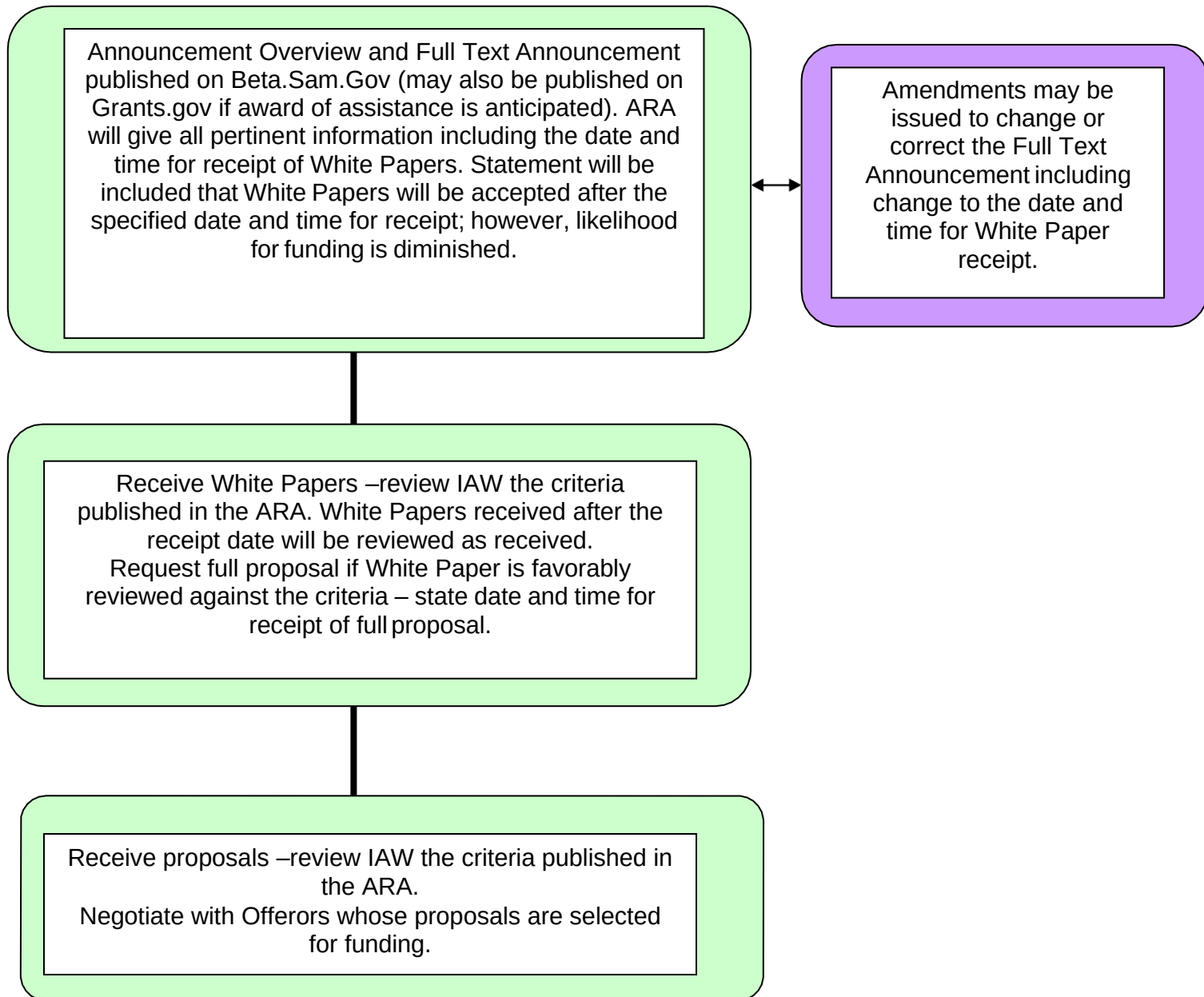
Two-Step Open Call



One-Step Closed Call



Two-Step Staggered-Closed Call



Open One-Step ARA

